

Gov and RCUK responses to Open Access Inquiry: eradicating non-disclosure clauses

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Today marked the publication of the Government and RCUK responses to the UK's BIS Committee Inquiry into Open Access. I haven't had time to digest the full document, but the overall points, made by the chair of the committee are summarised thus:

- The Government's statement that publishers must "immediately develop" sustainable solutions to "improve on the transparency" of the effect of payment of Article Processing Charges (APCs) on subscription rates to counter double dipping by publishers. The Government's important clarification that it "does not consider it appropriate for publishers to rely on retrospectively amortising their APC revenue to discount global subscription rates" will provide clear direction for publishers in this respect.
- The Government's agreement that Higher Education Institutions should not be required by publishers to accept non-disclosure clauses in publishing contracts which involve public funds.
- The confirmation that authors have freedom of choice over where to publish, and whether they opt for the Gold or Green route to open access. The recent Finch group Review of Progress adopts the same position. Our Report considered such freedom of choice to be fundamental, and it is a positive development that there is consensus from the Government, the Finch group and RCUK on this point.

- The Government's decision to commission a study to assess the feasibility of a full cost benefit analysis of its own open access policy. The Government announced its open access policy 16 months ago. The delay in undertaking a full cost benefit analysis inevitably raises questions about the extent to which the Government's open access policy is evidence based.

You may read it more cynically than that (and I might also do so once I've read it), but I'm personally pleased to see that the government

[...] agrees that HEIs should not be required by publishers to accept non-disclosure clauses in publishing contracts which involve public funds. The Government will discuss this issue with publishers and representative bodies. If what is considered to be inappropriate use of non-disclosure agreements is evident discussions will be held with the Office of Fair Trading (OFT) to seek their advice and whose responsibility it would be to make any referral to the Competition Commission (currently transiting to become the Competition and Markets Authority which will bring together the Competition Commission and much of the OFT).

If you see the original evidence that I gave, 'Evidence to House of Commons Select Committee Inquiry', in Inquiry into Open Access. Fifth report of session 2013-2014., by House of Commons Business, Innovation and Skills Committee (London: House of Commons, 2013), pp. Ev20–Ev27, Ev68–Ev69 (especially p Ev22), you will note that this was my point, so I'm definitely taking some credit for this:

"Dr Eve: Can I put a counter-argument that I have encountered in speaking with librarians? Non-disclosure clauses on big deal bundling of journals make it very difficult for libraries to consult with one another about the prices that they are being charged. [and more]", p. Ev22

As I say, I do need to read the rest of the document to digest the responses, and have to go teach now, but I think that aspect is certainly the start of a better pricing mechanism for libraries.